TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 18, 2017
MINUTES

Present: Mason Smith, Chair, Barry Wolff, Joseph Belton, Stephen Wood, Stephen Duke, Glyn Cowden.
Absent: Bobby Carrier.
Staff: Kent Prause, Julia Copeland, Lynnette Lynes

Mr. Smith called the meeting to order at 6:38 pm and reviewed the procedures with the public. He administered the oath to those speaking.

1. Approval of Minutes

Mr. Wolff moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.

2. Public Comment & General Correspondence

There being no comments, Mr. Smith continued with the agenda.

A. Request for one year extension of variance V-41-05 in accordance with §156.049 Vested Rights

Mr. Wolff asked about the extension. Mr. Prause answered that the applicant is eligible to receive the extension.

Mr. Wolff moved for approval of the one year extension. Mr. Belton seconded the motion. All in favor.

3. Business

A. A-3-17, I'On Subdivision, Phase 5, Sections D, E, and F., TMS 535-06-00-582, Appeal of the Zoning Administrator's decision regarding the interpretation and application of the Town's Critical Line Buffer Ordinance §156.201 stating that it does not apply to I'On Phase 5, Sections D, E, and F and the decision is contrary to Zoning Code sections 156.201 and 156.048. Record of the Zoning Administrator Correspondence

Mr. Prause stated that there are several parties of interest regarding this case that are represented by legal counsel. He suggested that a deferral might be preferred.

Mr. Tommy Goldstein, attorney for the appellant, stated that the property owner suggested a deferral in order to speak with the HOA Board of Directors to try to resolve the issue. He stated that they are prepared to go forward tonight if desired.

Mr. Sean Willis, attorney for I'On Assembly, stated that they are prepared to move forward with the request.

The Board agreed that since all parties are in favor of proceeding, the case would move forward.

Mr. Prause reviewed staff's position with the Board through a PowerPoint presentation.

Mr. Wolff asked what the encroachment into the critical line buffer is and what remedies would be available. Mr. Prause answered that the critical line buffer is a minimum of 35 feet. He stated that some changes to the buffer are proposed but have not yet been accomplished. Mr. Wolff asked if the original ordinance was implemented in 2000. Mr. Prause answered in the affirmative. Mr. Wolff asked if the effective date of the ordinance was after the final plat was signed. Mr. Prause answered in the affirmative but noted that per the ordinance, up to 33% of the total linear footage of the buffer can be cleared for a vision corridor.

Mr. Smith stated that if additional information was needed, they would bring staff back.

Mr. Goldstein, attorney for the applicant, reviewed the request with the Board. He distributed a copy of the critical line buffer study and read a portion for the Board. He suggested that the Zoning Administrator's decision is based on a scrivener's error regarding the date the ordinance was adopted as September 12, 2000. He stated that the ordinance was adopted January 11, 2000 and suggested that this error is confusion between two ordinances that were being considered around the same time. He stated that the preliminary plat references the critical line ordinance. He stated that the 2011 ordinance has a conjunctive "and" when outlining the criteria for the exemption and suggested that the Zoning Administrator does not include this, but rather reads it as an "or". He suggested that the third requirement is not met. He stated that another issue is that there is

a "sunset" provision exempting plats approved prior to the ordinance, but the I'On plat includes reference to the critical line buffer ordinance.

Mr. Willis, attorney for I'On Assembly, stated that the I'On Assembly is an owner of the property and is an interested party in this action. He stated that the work being conducted is under the advice of a horticulturist to preserve the plantings in the buffer. He stated that the applicant contends that there is a restrictive covenant prohibiting the issuance of a permit. He stated that they agree with the Town's position regarding the interpretation of the ordinance and that restrictive covenant issues are a civil matter.

Mr. Jody McCauley, president of I'On Homeowner's Association (HOA), stated that two mile marsh trail is one of the most used amenity for the neighborhood. He stated that they have maintained the buffer over the years. He stated that the horticulturist recommended pruning of the vegetation for preservation of the buffer. He stated that they have worked with the Town to ensure there are no violations.

Ms. Amanda Williams stated that the HOA recently clear-cut a portion of the buffer for installation of a basketball court over the objection of approximately 300 residents. She expressed concern that the HOA Board does not have the neighborhood's best interest in mind and are not concerned with the environment.

Ms. Allison Heidelman, 50 Hopetown Road, stated that there are invasive vines that are choking the trees in the buffer. She stated that the buffer should be maintained so that there is a view to the marsh and the trees in the buffer preserved. She stated that the trail is a benefit and suggested that the HOA should be allowed to maintain the buffer.

Mr. Tom O'Brian, 15 Hopetown Road, stated that there lacks consistency with the preservation of the buffer. He stated that the HOA board is trying to have uniformity and consistency with maintaining the buffer. He stated that the invasive vines are damaging the trees.

Mr. Michael Bursaw, member of HOA board, stated that the board is following the recommendations of the horticulturist. He stated that the neighborhood received a landscape award from the Town. He stated that they are merely trying to provide

proper maintenance of the area. He stated that the marsh trail is an amenity for not only the neighborhood, but the entire Town.

Ms. Laurie Thornhill, 22 Hopetown Road, stated that the marsh walk is overgrown and no longer provides a nice view. She stated that the overgrown vegetation is causing a rodent problem. She stated that the marsh needs to be cleaned out and maintained. She stated that the marsh walk is a great amenity not only for the neighborhood but for the Town as a whole.

Ms. Beth Strickland, 19 Saturday Road, stated that the vines have reached over twenty feet in height and have overgrown the buffer. She expressed concern that the vines are weakening the trees and that during a strong storm event, the trees could fall and cause damage to the surrounding homes.

Mr. Trey Mathison, 146 N. Shelmore, and member of HOA Board, stated that he often uses the marsh walk. He stated that this is an important amenity for the neighborhood. He stated that it should be maintained so that it is not an eyesore for the community. He suggested that there should be a consistent maintenance plan for the buffer.

Ms. Monica Miller suggested that proper maintenance has not been accomplished. She suggested that the buffer should remain undisturbed and a view corridor is not a necessity.

Mr. Lee Gastley, Seamon, Whiteside, and Associates, stated that water quality is one of the main reason for the critical line buffer. He stated that he has not seen that major clearing has been accomplished within the buffer. He stated that the intent was to allow a view of the marsh and views of the water would be shared by the entire neighborhood.

Ms. LeeAnn Adkins suggested that the date within the ordinance has no rationale and basically left the neighborhood unprotected. She suggested that the date is arbitrary to the critical line buffer. She stated that she has photographs showing the cutting of the buffer and provided this to the Board. She stated that she is not opposed to having a view corridor, but the cutting of the buffer should be done in a planned and methodical manner. She suggested that she is opposed to the Zoning Administrator's determination of upholding the arbitrary date.

Mr. Duke asked if the date is arbitrary or in error. Ms. Adkins answered that the ordinance revision dates are cited at the bottom of the ordinance section and there were two ordinances that were being amended during the same period of time. Mr. Duke asked if it is an arbitrary date. Ms. Adkins answered that she contends that the date is an error. She contended that this was a substantial amendment. She suggested that neither she nor other residents of the residents were made aware of or provided notice.

There being no further comments, Mr. Smith closed public comment.

Mr. Smith asked if the date was arbitrary. Mr. Prause answered that the date was referenced to when trees were required to be shown on a sketch plan. He stated that the original ordinance did not include effective dates and was later amended to include the effective date. He further stated that the ordinance did not include an "and" when listing the requirements for an exemption and showed the verbiage to the Board. He reviewed case law relative to these proceedings with the Board.

Mr. Wolff asked about the phases and if the land is buildable. Mr. Prause answered that phase 5 included approximately 127 lots and included provisions for trails within the neighborhood for use of the entire neighborhood. Mr. Wolff stated that the date was chosen by Town Council and is part of the ordinance.

▶ *Mr. Wolff moved to uphold the decision of the Zoning Administrator based on the findings included in the staff report. Mr. Cowden seconded the motion. All in favor.*

4. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:54 pm.

Submitted by,
L. Lynes
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